

NON-DISCLOSURE AGREEMENT

Relating to a proposed investment in L'avenir, El Mostakbal City, Cairo

ALL INFORMATION PROVIDED TO THE RECIPIENT IS CONFIDENTIAL. This covers every document in the information pack (investment presentation, investment memorandum, financial annex and model, due diligence memorandum), everything in the data room, everything said in meetings and calls, and the fact and terms of the discussions. It may be used only to decide whether to invest, and may not be disclosed, copied or passed on except as this agreement allows.

This Agreement is made on [date] between:

1. **Jalour Developments**, [legal form and registration number], whose registered office is at [address] (**Jalour**), acting for itself and on behalf of its Affiliates and the project company or companies for the Project; and
2. **[Name of investor]**, [legal form and registration number or ID], whose registered office or address is at [address] (the **Recipient**).

1. Definitions

Table 1: Definitions

Term	Meaning
Affiliate	In relation to a person, any entity that controls, is controlled by, or is under common control with it, including Al Jalal Holding.
Project	The development known as L'avenir, including the land, the landowner arrangements, the project company or companies and the proposed financing.
Purpose	Evaluating, negotiating and, if agreed, completing an investment by the Recipient in the Project (the Transaction).

Term	Meaning
Confidential Information	All information, in any form or medium, that Jalour or its Affiliates or advisers disclose to the Recipient or its Representatives, before or after the date of this Agreement, in connection with the Transaction, whether or not marked confidential. It includes, without limit: (a) the information pack: investment presentation, investment memorandum, financial annex and underlying financial model, due diligence memorandum and any update; (b) all data-room documents; (c) financial projections, cash flows, valuations, prices, price lists, payment plans, costs, funding plans and returns; (d) the terms of the landowner arrangements and the identity of, and terms with, the landowner, contractors, consultants, buyers and other counterparties; (e) the proposed terms of the Transaction, including ticket size, options, security and structure; (f) market analyses prepared for or by Jalour; (g) information about Jalour, Al Jalal Holding or any of their other projects, businesses or finances that is disclosed to the Recipient; (h) the fact that discussions are taking place and their status and terms; and (i) all notes, analyses, summaries and other material prepared by or for the Recipient that contain or reflect any of the above (Derived Material).
Representatives	In relation to the Recipient, its directors, officers, employees, shareholders, professional advisers (lawyers, tax advisers, accountants), financiers and co-investors approved in writing by Jalour, in each case who need to know the Confidential Information for the Purpose.

2. Confidentiality obligations

The Recipient shall, and shall procure that its Representatives shall:

- keep all Confidential Information strictly confidential and protect it with at least the care it applies to its own most sensitive information, and no less than reasonable care;
- use it only for the Purpose and for no other purpose, including not for competing with, or investing in or financing a competing activity against, Jalour or the Project;
- not disclose it to any person other than Representatives under clause 3;
- not copy, reproduce or store it except as needed for the Purpose, and keep any copies on secured systems;
- not publish, post or discuss it in any public forum or with the press, and not disclose the fact of the discussions;
- tell Jalour promptly if it becomes aware of any actual or suspected unauthorised access, use or disclosure, and help Jalour to stop and limit it.

3. Representatives

The Recipient may disclose Confidential Information to its Representatives only to the extent they need it for the Purpose, after informing them of its confidential nature and binding them to obligations no less strict than this Agreement. The Recipient is liable for any act or omission of a Representative that would breach this Agreement if done by the Recipient. Co-investors and financiers need Jalour's prior written approval.

4. Exclusions

Clause 2 does not apply to information that the Recipient can show by written records: (a) is or becomes public other than through a breach of this Agreement or another duty of confidence; (b) was lawfully known to the Recipient, free of any duty of confidence, before disclosure by Jalour; (c) is lawfully received from a third party who is not under a duty of confidence; or (d) is independently developed by the Recipient without use of Confidential Information. Information is not within these exceptions merely because individual parts of it are public. A combination of items is within the exceptions only if the combination itself is public.

5. Compelled disclosure

If the Recipient or a Representative is required by law, court order, regulator or stock-exchange rule to disclose Confidential Information, it shall (to the extent lawful) tell Jalour in advance, consult on the scope and timing, disclose only the minimum required, and ask for confidential treatment of what is disclosed.

6. Ownership, no licence, no warranty

All Confidential Information remains the property of Jalour or the relevant third party. Nothing in this Agreement gives the Recipient any licence or right in it. Jalour does not give any warranty as to the accuracy or completeness of the Confidential Information, except as set out in any definitive agreement. Projections and forecasts are not guarantees.

7. Return and destruction

Within [10] business days of Jalour's written request, or if the Recipient decides not to proceed, the Recipient shall return or destroy (and confirm in writing by an authorised officer) all Confidential Information and Derived Material, except copies it must keep by law or under bona fide compliance policy, or held in routine back-ups, which remain subject to this Agreement for as long as they are kept.

8. Non-circumvention

For [12] months from the date of this Agreement the Recipient shall not, without Jalour's prior written consent, directly or indirectly approach, negotiate with or enter into any arrangement with the landowner, any contractor, consultant, lender, buyer or broker of the Project, about the Project or about acquiring, financing or investing in the land or the Project, using or based on Confidential Information. General dealings unrelated to the Project and not using Confidential Information are not restricted.

9. No obligation; further capital

Nothing obliges either party to proceed with the Transaction. No agreement for the Transaction exists unless and until definitive written agreements are signed. Jalour may at any time end discussions, change the terms or process, and raise further capital at project or holding level, subject to any rights it has expressly agreed in writing with the Recipient. This Agreement does not grant the Recipient exclusivity.

10. Term

The obligations in this Agreement apply from the date of this Agreement and continue for [three] years from the later of that date and the date of the last disclosure of Confidential Information. They continue without time limit for trade secrets and for personal data, for as long as the information remains a trade secret or personal data.

11. Remedies

The Recipient acknowledges that damages alone may not be an adequate remedy for breach and that Jalour is entitled to seek injunctions and specific performance, without proof of actual damage and without bond, in addition to other remedies. [The Recipient shall indemnify Jalour against losses arising from its or its Representatives' breach: counsel to confirm.]

12. Governing law and disputes

This Agreement is governed by [the laws of the Arab Republic of Egypt]. Any dispute shall be finally settled by arbitration under the rules of [the Cairo Regional Centre for International Commercial Arbitration (CRCICA)] by [one] arbitrator, seated in [Cairo], in [English]. Either party may seek urgent interim relief from any competent court. [Counsel to confirm law, forum and language.]

13. General

- **Entire agreement.** This Agreement is the whole agreement on its subject and may be changed only in writing signed by both parties.
- **Assignment.** The Recipient may not assign or transfer its rights or obligations without Jalour's written consent. Jalour may assign to an Affiliate or to the project company.
- **Third parties.** Jalour's Affiliates and the landowner may rely on this Agreement to the extent it protects information relating to them, as permitted by law.
- **Notices.** In writing, to the addresses above or any other address notified in writing.
- **Severability and waiver.** An invalid provision does not affect the rest. A delay in enforcing a right is not a waiver.
- **Counterparts and language.** This Agreement may be signed in counterparts and electronically. [If signed in English and Arabic, the version that prevails: counsel to confirm.]

Signatures

Table 2: Signature block

For Jalour Developments	For the Recipient
Name: [name]	Name: [name]
Title: [title]	Title: [title]
Signature: _____	Signature: _____
Date: [date]	Date: [date]

Schedule 1: Categories of Confidential Information covered

- Investment presentation, investment memorandum, financial annex and model, and due diligence memorandum for L'avenir.
- Data room: corporate, landowner, land and permits, design and cost, sales, sponsor, legal and market folders.
- Sponsor material: track record, management biographies, audited financial statements of Jalour and Al Jalal Holding, references.
- Terms of the proposed investment, security and structure, and all correspondence about them.
- Financial information about the Project and about any other Jalour project that is shown to the Recipient.

Schedule 2: Representatives approved at signing

Table 3: Approved Representatives

Name	Role and organisation	Purpose
[name]	[role, firm]	[legal / tax / financial advice]
[name]	[role, firm]	[]